THE CHANDIGARH DISTURBED AREAS ACT, 1983

ARRANGEMENT OF SECTIONS

SECTIONS

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IndiaCode

THE CHANDIGARH DISTURBED AREAS ACT, 1983

ACT NO. 33 OF 1983

[8*th December*, 1983.]

An Act to make better provision for the suppression of disorder and for the restoration and maintenance of public order in disturbed areas in Chandigarh.

BE it enacted by Parliament in the Thirty-fourth Year of the Republic of India as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called the Chandigarh Disturbed Areas Act, 1983.

(*2*) It extends to the whole of the Union territory of Chandigarh.

(*3*) It shall be deemed to have come into force on the 7th day of October, 1983.

2. Definitions.—In this Act,—

(*a*) "Administrator" means the Administrator of the Union territory of Chandigarh appointed under article 239 of the Constitution;

(*b*) "disturbed area" means the area which is for the time being declared by notification under section 3 to be a disturbed area.

3. Powers to declare areas to be disturbed areas.—The Administrator may, by notification in the Official Gazette, declare that the whole or any part of the Union territory of Chandigarh as may be specified in the notification, is a disturbed area.

4. Power to fire upon persons contravening certain orders.—Any Magistrate or Police Officer not below the rank of Sub-Inspector or Havildar in case of the Armed Branch of the Police may, if he is of opinion that it is necessary so to do for the maintenance of public order, after giving such due warning, as he may consider necessary, fire upon, or otherwise use force, even to the causing of death, against any person who is acting in contravention of any law or order for the time being in force in the disturbed area, prohibiting the assembly of five or more persons or the carrying of weapons or of things capable of being used as weapons or of fire-arms, ammunition or explosive substances.

5. Powers to destroy arms dump, fortified positions, etc.—Any Magistrate or Police Officer not below the rank of a Sub-Inspector may, if he is of opinion that it is necessary so to do, destroy any arms dump, prepared or fortified position or shelter from which armed attacks are made or are likely to be made or are attempted to be made or any structure used as training camp for armed volunteers or utilised as a hide-out by armed gangs or absconders wanted for any offence.

6. Protection of persons acting under sections 4 and 5.—No suit, prosecution or other legal proceedings shall be instituted except with the previous sanction of [1][the Central Government]against any person in respect of anything done or purporting to be done in exercise of the powers conferred by sections 4 and 5.

7. Repeal and saving.—(*1*) The Chandigarh Disturbed Areas Ordinance, 1983 (6 of 1983), is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under the corresponding provisions of this Act.

1. Subs. by Act 15 of 1989, s. 2,for "the Administrator" (w.e.f. 18-5-1989).